

Illinois Kei Vehicle Registration — One-Page Internal Summary

For Illinois legislators & staff • Quick reference (as of 2026-02-18) • Nonpartisan issue brief

Issue in one sentence

Illinois is treating lawfully importable kei vehicles (often via the federal 25-year import pathway) as off-highway/non-highway based on the Secretary of State's interpretation of 625 ILCS 5/3-401(c-1), so owners cannot title/register them for normal road use.

What the Secretary of State is relying on (current posture)

The SOS points to 625 ILCS 5/3-401(c-1), which bars registration unless the vehicle was originally manufactured for operation on highways (or is a modification/assembly of highway-intended components). SOS interprets this to exclude kei vehicles because they were not manufactured for operation on U.S. highways, and cites AAMVA "best practice" guidance in the absence of a state statute explicitly authorizing/regulating kei use.

Key takeaway

This is not a paperwork glitch — it's a statutory clarity problem. Under SOS's own framing, the fix is legislative: clarify how highway-built, foreign-manufactured vehicles fit within Illinois registration law when they are federally lawful to import.

Why a narrow statutory fix is the most direct solution

Illinois can keep existing safety/equipment enforcement intact while clarifying that a foreign-manufactured vehicle originally designed for highway use in another jurisdiction may be titled/registered here when it is legally importable under federal law. This resolves the "originally manufactured for operation on highways" ambiguity without creating a broad exemption or weakening enforcement of Illinois traffic, equipment, insurance, and titling requirements.

Legislative concept (drafting direction)

Add a targeted clarification to 625 ILCS 5/3-401(c-1) (or a closely related definitional section) so a vehicle may be registered if it was originally manufactured for operation on highways in any jurisdiction and is legally importable into the United States under federal law (commonly 25+ years). Then apply normal Illinois road-use conditions (title documentation, insurance, equipment compliance, etc.).

What we are asking your office to do

1. Identify the best legislative vehicle and sponsor path (Transportation / Vehicle Code).
2. Facilitate a staff-level meeting with SOS legal/policy to confirm what statutory language would satisfy their interpretation.
3. If supportive, commit to carry or co-sponsor a narrowly drafted fix in the next filing window.

Note: This summary is designed for quick internal circulation; it is not legal advice. Federal import pathways commonly include a 25-year NHTSA exemption for certain requirements; EPA emissions obligations may still apply depending on vehicle and circumstances.